

1.

CASE #	CASE NAME	HEARING NAME
CVRI2205127	COUNTY OF RIVERSIDE vs WAYNE	MOTION FOR AN ORDER APPROVING (1) THE RECEIVER'S AND COUNTY'S INTERIM EXPENSES; (2) PAYMENT OF THE RECEIVER'S AND COUNTY'S EXPENSES BY THE OWNER; AND (3) AUTHORIZATION TO MARKET THE PROPERTY FOR SALE GS STRATEGIES, INC.

Tentative Ruling:

Receiver's Motion for an Order Approving Expenses is granted. Order signed.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503019	HA vs FELEGY	MOTION TO COMPEL

Tentative Ruling:

Plaintiff's Motion to Compel Further Discovery Responses is moot. Sanctions are denied.

Any party may obtain discovery by propounding to any other party written interrogatories. (CCP §2030.010(a).) The party to whom interrogatories have been propounded shall respond in writing under oath to each interrogatory by: (1) an answer containing the information sought to be discovered; (2) an exercise of the party's option to produce writings; or (3) an objection to the particular interrogatory. (CCP § 2030.210(a)(1)-(3).) The propounding party may move for an order compelling a further response if the party deems that an objection to an interrogatory is without merit or too general. (CCP §2030.300(a)(3).) Likewise, Pursuant to CCP §2033.010, any party may obtain discovery in which any other party must admit "the truth of specified matters of fact, opinion relating to fact or application of law to fact." Requests for admission differ from other forms of discovery because rather than seeking to uncover information, they seek to eliminate the need for proof and set at rest triable issues so they will not have to be tried. (*Muillo v. Superior Court* (2006) 143 Cal. App. 4th 730, 735-736.) The requesting party may move for an order to compel a further response if the party deems the answer to be evasive or incomplete. (CCP § 2033.290(a)(1).)

Meet and Confer:

A motion to compel a further response to an interrogatory, inspection demand or request for admission must be accompanied by a declaration stating facts showing a "reasonable and good faith attempt" to resolve informally the issues presented by the